

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600215	VOLL VS MX FOOD T CORP	MOTION TO BE RELIEVED AS COUNSEL

Tentative Ruling:

The motion to be relieved as counsel is granted. Counsel is relieved as counsel of record for clients effective upon the filing of the proof of service of the signed order being served upon clients. If the proof of service is not filed, counsel will remain counsel of record for all purposes related to this action.

The court sets a Trial Readiness Conference on March 17, 2027, at 8:30 a.m.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601669	LEWIS VS ECOLOGY AUTO PARTS, INC.	DEMURRER

Tentative Ruling:

The meet-and-confer requirement has been met.

4th cause of action for dangerous condition of public property

Pursuant to Government Code § 835, in order for Plaintiffs to adequately plead a cause of action against Defendant for dangerous condition of public property, they must establish that (1) Defendant owned or controlled the property, (2) the property was in a dangerous condition at the time of the injury, (3) the dangerous condition created a reasonably foreseeable risk of the kind of injury that was occurred, (4) the negligent or wrongful conduct of Defendant's employee acting within the scope of employment created the dangerous condition or, Defendant had notice of the dangerous condition for a long enough time to have protected against it, (5) Plaintiffs were harmed, and (6) the dangerous condition was a substantial factor in causing Plaintiffs' harm.

Here, Plaintiffs allege a dangerous condition existed on Ironwood Avenue due to leaked fluid that came from an Ecology vehicle. (FAC, Ex. A, page 5, ¶23.) Plaintiffs further allege the fluid leak from Ecology's vehicle constituted a negligent act by Ecology [a third party], forming the basis of their claims against Ecology. (FAC, Ex. A, page 4, ¶ 21, and page 5, ¶ 22-23.)

In regard to dangerous conditions of public property that are created by third parties, the Supreme Court of California held in *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1137, that "there is no liability for injuries [due to a dangerous condition of public property] caused solely by the acts of third parties." The Supreme Court further went on

to articulate in *Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, that "a public entity may be liable for a dangerous condition of public property even when the immediate cause of a plaintiff's injury is a third party's negligent or illegal act (such as a motorist's negligent driving), [only] if some physical characteristic of the property exposes its users to increased danger from third party negligence or criminality. Public entity liability lies under section 835 when some feature of the property increased or intensified the danger to users from third party conduct." (See *Castro v. City of Thousand Oaks* (2015) 239 Cal.App.4th 1451, 1457–1458 citing *Bonanno*.) California Courts have gone on to establish that the physical characteristic, as described in *Bonanno*, must be a defect in the physical condition of the property itself, such as the public entity defendant maintaining the property in such a way as to increase the risk of negligent behavior. (See *Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1348; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1124.)

Plaintiffs' FAC is entirely void of any factual allegations pinpointing any physical defect of Ironwood Avenue that exposed Plaintiffs to an increased or intensified risk of danger. The FAC tries to mask this deficiency through its description of how dangerous the condition itself was. But as to factual allegations of possible physical defects in Ironwood Avenue, the FAC contains none. There is no indication that Ironwood Avenue was not a perfectly functioning road before the incident, allowing countless vehicles to travel to and from the Badlands landfill without issue, demonstrating a clear lack of any physical defect that could possibly increase or intensify a risk of danger.

The above premise is supported by Plaintiffs' own FAC where they allege that the leaked fluid from the Ecology vehicle was in the "active travel lanes" of Ironwood Avenue. (See FAC, Ex. A, page 7, ¶ 43.) As noted by Defendant County, active travel lanes are not physical defects of a property. If anything, having active travel lanes indicates that Ironwood Avenue was properly designed and maintained as to allow constant traffic flow, without a problem, especially on the day of the alleged incident, until Ecology negligently leaked fluid on to an otherwise safe and secure road.

Accordingly, the one and only way a plaintiff can still maintain a dangerous condition theory against the public entity is if they allege "that some physical characteristic of the property exposes its users ... increased or intensified the danger." (See *Castro v. City of Thousand Oaks* (2015) 239 Cal.App.4th 1451, 1457–1458 citing *Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139.)

In the Opposition, Plaintiffs try to save their cause of action by arguing they alleged in the FAC "that the condition of the roadway itself became dangerous ..." and that a "roadway surface contaminated by a slippery fluid is a condition of property." (See Plaintiffs' Opposition, p. 3, ¶¶ 15, 19-20.) However, this allegation does not address the very real deficiency that the FAC contains no allegation as to what condition, aspect, or part of the property itself increased or intensified the danger. The roadway was properly functioning as Plaintiffs have clearly admitted to in their First Amended Complaint. (See Plaintiffs' First Amended Complaint, page 7, ¶ 43.) Again, a roadway in and by itself does not increase the danger from spilled liquid to a potential plaintiff. The cases of

Zelig, *Castro*, and *Bonanno* clearly established that there has to be some physical defect in the property itself that increases the harm. The property being a roadway where vehicles might travel is simply not enough to form the basis of such a cause of action.

Plaintiffs also try to save this cause of action by citing dangerous condition cases regarding known hazards to a public entity, essentially stating they are somehow analogous. The cases are *Swaner v. City of Santa Monica* (1984) 150 Cal.App.3d 789 and *Ducey v. Argo Sales Co.* (1979) 25 Cal.3d 707.) However, *Swaner* involved the public entity not erecting a fence between a parking area and a bench, and *Ducey* involved the public entity not installing a median. (See Plaintiffs' Opposition, p. 3, ¶¶ 22-24.) These cases are distinguishable, but even if they were not, they still do not give Plaintiff the ability to circumvent the established California authority requiring dangerous condition claims where third parties cause the dangerous condition to include allegations of some aspect of the property increasing or intensifying the risk of injury.

The demurrer is sustained as to the fourth cause of action.

2nd cause of action for negligence

When plaintiffs plead multiple causes of action in complaints, California Courts can evaluate whether one of the causes of action is duplicative of the others and dismiss the duplicative one. As outlined in *Rodrigues v. Campbell Industries* (1978) 87 Cal.App.3d 494, 501, a cause of action is deemed duplicative of another if it contains no new allegations "and thus adds nothing to the complaint by way of fact or theory of recovery." This concept was further upheld and clearly outlined as a recognized "basis for sustaining a demurrer" in *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290. (See also *Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135.)

Plaintiffs' fourth cause of action already attempts to establish a claim for dangerous condition of public property against Defendant. (FAC, Ex. A, page 7, ¶ 42-43 and page 8, ¶ 44-48.) However, Plaintiffs' second cause of action for general negligence repeats the same allegations, in reduced form. The second cause of action reduces the allegations to just four paragraphs with identical information. (See Exhibit A, Plaintiffs' First Amended Complaint, page 5, ¶ 24-27.) The second cause of action contains nothing new factually that in any way adds to the FAC.

As for the second cause of action adding a new theory of recovery to the FAC, not only does the second cause of action clearly fail to do so since it cites Government Code § 835 and labels the root of the negligence claim as a dangerous condition of public property. (See FAC, Ex. A., page 5, ¶ 25-26), but it would also be impossible for Plaintiffs' second cause of action to add a new theory of recovery.

Since Defendant is a public entity pursuant to Government Code § 811.2 and page 2, paragraph 3 of Plaintiffs' FAC, all liability claims against Defendant are governed by the

Tort Claims Act. The Tort Claims Act requires all liability theories against public entities to be statutorily based, not based on common law. The intent of the Tort Claims Act "is not to expand the rights of plaintiffs in suits against governmental entities, but to confine potential governmental liability to rigidly delineated circumstances: immunity is waived only if the various requirements of the act are satisfied." (*Williams v. Horvath* (1976) 16 Cal.3d 834, 838.) "As the Senate Legislative Committee explained in the comment to Government Code § 815, 'the practical effect of this section is to eliminate any common law governmental liability for damages arising out of torts.'" (*Davis ex rel. Sims v. Santa Barbara High School District* (C.D. Cal. 1998) 48 F.Supp. 2d 1225, 1232.)

Under the Tort Claims Act and California Government Code § 835, a public entity, such as Defendant, can only be held liable for issues regarding its property if liability is based on a dangerous condition of public property theory. Plaintiffs attempt to establish the statutory basis for their general negligence cause of action by citing Government Code § 835 in multiple paragraphs. (FAC, Ex. A, page 5, ¶¶ 25-26.) However, by doing so, Plaintiffs have effectively established that their theory of recovery under their second cause of action is the same as their fourth cause of action since the fourth cause of action already outlines their dangerous condition of public property theory. Thus, the second cause of action cannot possibly add a new theory of recovery to Plaintiffs' First Amended Complaint.

Plaintiffs ask the court to treat their fourth cause of action as a statutory negligence claim. (See Plaintiffs' Opposition, p. 6, ¶¶ 1-2.) However, in doing so, Plaintiffs have duly admitted that their fourth cause of action is duplicative of their second cause of action. Plaintiffs admit that their fourth cause of action "expressly incorporates the statutory dangerous-condition theory against the County ..." (See Plaintiffs' Opposition, p. 6, ¶¶ 8-9.) Plaintiffs also admit that the language of their fourth cause of action creates uncertainty since "the allegations themselves identify the statutory basis" of Government Code § 835. (See Plaintiffs' Opposition, p. 6, ¶¶ 14-15.) These are acknowledgements that Plaintiffs do not have a second theory of liability against Defendant to support their fourth cause of action. Rather, they try to maintain it by restating the exact same facts and elements as their second cause of action for dangerous condition of public property.

The demurrer is sustained as to the second cause of action.

The demurrer is sustained as to the second and fourth causes of action, with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first. Moving party is ordered to give notice.

The only causes of action in the First Amended Complaint against the moving party County of Riverside are the second and fourth. In consideration of the moving party's request to sustain the demurrer without leave to amend and to dismiss the case, the court sets a hearing re: filing of the Second Amended Complaint or dismissal of action as to the County of Riverside on October 12, 2026, at 8:30 a.m.